



IN CONTEXT

FOCUS

Civil law and private property

BEFORE

494 BCE Barred from public office, plebeians set up their own assembly.

c. 450 BCE The Twelve Tables is Rome's earliest written law code.

287 BCE The *Lex Hortensia* gives the Plebeian Assembly the power to make laws without Senate approval.

AFTER

426 CE Emperor Valentinian III's *Lex Citationum* (*Law of Citations*) names five earlier respected jurists (Ulpian, Gaius, Papinian, Paulus, and Modestinus) whose opinions are to guide judges in trials.

529–533 CE Emperor Justinian publishes the *Code*, the *Digest*, and the *Institutions*, which together form a definitive body of Roman law.

A PERSON IS LIABLE FOR WRONGFUL DAMAGE

THE *LEX AQUILIA* (286 BCE)

The *Lex Aquilia* was a Roman law that provided financial compensation for wrongful damage to property. Named after Aquilius, the plebeian tribune (elected official of ordinary citizens) who framed it, it was one of the first laws drawn up after the Plebeian Assembly was given the power to legislate without seeking approval from the Senate. Plebeians could now gain redress for civil wrongs done by the patricians, the ruling elite who dominated the Senate.

The *Lex Aquilia* described the compensation owed in different scenarios. It stated that if anyone unlawfully killed a slave or livestock, they had to pay the owner its highest value in the preceding year. Another clause covered damage to all types of property, requiring the cost of the damage to be assessed within 30 days and the appropriate sum paid.

Later definition

The *Lex Aquilia* superseded all earlier laws dealing with unlawful damage. Its legacy is the modern legal concept of the “delict” as

a civil wrong arising from an intentional or negligent breach of duty of care.

Roman laws were subject to interpretation, but the jurist Ulpian (c. 170–223 CE) later reiterated that unlawful damage is that caused “in a blameworthy fashion”—thus including harm through negligence, but not as a result of accident. Ulpian was cited in Emperor Justinian's *Digest* of 533 CE, preserving the *Lex Aquilia*'s legacy for years to come. ■



If a stone falls out of a cart and ... smashes something, the carter is liable to the Aquilian action if he loaded the stones badly.

Ulpian

Justinian's *Digest*, 533 CE



See also: The Twelve Tables 30 ■ Ulpian the Jurist 36–37 ■ Gratian's *Decretum* 60–63 ■ *Donoghue v. Stevenson* 194–195